

SENATE No. 1716

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act regulating illegal exhaust systems for motor vehicles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>3/25/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>6/10/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>7/7/2025</i>

SENATE No. 1716

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 1716) of Jason M. Lewis for legislation to regulate illegal exhaust systems for motor vehicles. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act regulating illegal exhaust systems for motor vehicles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 90 of the General Laws, as appearing in the 2022
2 Official edition, is hereby amended by inserting after the definition for “hybrid vehicle” the
3 following definition:-

4 “Illegal Exhaust Systems”, an exhaust system shall be deemed illegal if it is modified or
5 altered in a way that amplifies the sound of the exhaust beyond 75 decibels (dB) for vehicles
6 with a Gross Vehicle Weight Rating of 6,000 pounds or less or 80 decibels (dB) for a vehicle
7 with a Gross Vehicle Weight Rating over 6,001 pounds. Decibel measurements shall be taken
8 with a certified device fifty feet from the center of the lane of travel. An exhaust system may also
9 be deemed illegal if it is modified to bypass, eliminate, or alter the function of any manufacturer-
10 installed muffler or noise reduction device.”

11 SECTION 2. Section 7A of said chapter 90 of the General Laws, as so appearing, is
12 hereby amended by inserting at the end of the fourth paragraph the following sentences:-

During a Massachusetts State Inspection, the inspector shall perform visual and emission tests for cars and motorcycles, including on cars manufactured before 1997 and diesel vehicles manufactured before 2008. The inspector shall verify that all exhaust system components meet all current and applicable standards set by the United States Environmental Protection Agency (EPA).

SECTION 3. Section 16 of said chapter 90 of the General Laws, as so appearing, is hereby amended by inserting after the sentence ending with the word “by-pass”, in line 13, the following sentence:-

No person shall operate a motor vehicle and no auto body or repair shop shall modify a motor vehicle so that it has an illegal exhaust system as defined in section 1 of this chapter.

SECTION 4. Said section 16 of said chapter 90 of the General Laws, as so appearing, is hereby amended by inserting after the sentence ending in the word “exhaust”, in line 18, the following sentences:-

Police officers are authorized to issue citations for illegal exhaust systems as defined in section 1 of this chapter. Police officers may use decibel readers or shall take into consideration accepted scientific and professional methods for the measurement of vehicular sound levels to assess exhaust noise and confirm violations. Officers are authorized to use handheld decibel meters to measure exhaust noise at fifty feet from the center of the lane of travel. Officers may conduct noise assessments based on audible observations, decibel meter readings, or both.

The Massachusetts Registry of Motor Vehicles shall establish guidelines for the calibration, maintenance, and use of decibel meters to ensure accurate and consistent measurements in compliance with this statute.

SECTION 5. Section 20 of said chapter 90 of the General Laws, as so appearing, is hereby amended by inserting after the first paragraph the following paragraph:-

Any person found having an illegal exhaust system in violation of section 16 shall be punished by a fine of \$300 for a first offense, a fine of \$600 for a second offense, and a fine of \$1000 for a third offense. A fourth or subsequent offense shall entail a suspension of the registration of the motor vehicle until compliance is demonstrated. If an auto body or auto repair shop violates section 16 of this chapter, it shall be punished by a fine of \$500 for a first offense, a fine of \$1000 for a second offense, and a fine of \$2000 for a third offense. A fourth or subsequent offense within a period of 18 months shall be subject to a fine of \$5000.